

# Peter Ormerod

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GOOGLE SCHOLAR [goo.gl/jbujgU](https://scholar.google.com/citations?user=jbujgU)

## Scholarly Interests

Artificial Intelligence • Internet Law • Information Privacy  
Data Governance • Antitrust • Torts

## Academic Appointments

**Villanova University Charles Widger School of Law**

2025- Associate Professor of Law

**Northern Illinois University College of Law**

2022-25 Assistant Professor of Law

**Western Carolina University College of Business**

2019-22 Assistant Professor of Business Law (TENURE TRACK)

2018-19 Assistant Professor of Business Law (FIXED TERM)

2017-18 Adjunct Professor of Business Law

## Education

2013 J.D.

**The George Washington University Law School**

Thurgood Marshall Scholar (FALL 2010 – SPRING 2012)

*The George Washington International Law Review*, Member

Moot Court Board, Member

2010

**B.A. in Economics *magna cum laude***

**The George Washington University**

THESIS: “Vioxx: The Market Valuation of a Drug Recall”

## Scholarship

### JOURNAL ARTICLES

**Data Governance’s First Amendment Opportunity**

105 NORTH CAROLINA LAW REVIEW \_\_\_\_ (forthcoming 2027)

**Regulating Manipulative Design Is Not Preempted by CDA 230 or the First Amendment**

75 EMORY LAW JOURNAL 1101 (2026) (with Brett M. Frischmann)

**Regulating Data Monetization**

13 TEXAS A&M LAW REVIEW 1003 (2026)

**Privacy Law’s Incumbency Problem**

58 UC DAVIS LAW REVIEW 179 (2024)

**Privacy Qui Tam**

98 NOTRE DAME LAW REVIEW 267 (2022)

- Reviewed by Christine Bartholomew in [JOTWELL](#)

**Making Privacy Injuries Concrete**

79 WASHINGTON & LEE LAW REVIEW 101 (2022)

- Cited in McGeveran, *Privacy & Data Protection Law*, 295 (2d ed. 2023)

**Privacy Injuries and Article III Concreteness**

48 FLORIDA STATE UNIVERSITY LAW REVIEW 133 (2021)

- WCU College of Business Summer 2019 Research Grant Recipient

**A Private Enforcement Remedy for Information Misuse**

60 BOSTON COLLEGE LAW REVIEW 1893 (2019)

**WannaCry, Ransomware, and the Emerging Threat to Corporations**

86 TENNESSEE LAW REVIEW 503 (2019) (with Lawrence J. Trautman)

**A Descriptive Analysis of the Fourth Amendment and the Third-Party Doctrine in the Digital Age**

28 ALBANY LAW JOURNAL OF SCIENCE & TECHNOLOGY 73 (2018) (with Lawrence J. Trautman)

**Industrial Cyber Vulnerabilities: Lessons from Stuxnet and the Internet of Things**

72 UNIVERSITY OF MIAMI LAW REVIEW 761 (2018) (with Lawrence J. Trautman)

**Corporate Directors' and Officers' Cybersecurity Standard of Care: The Yahoo Data Breach**

66 AMERICAN UNIVERSITY LAW REVIEW 1231 (2017) (with Lawrence J. Trautman)

- Excerpted in Thaw, Tschider, Hurwitz & Bambauer, *Cybersecurity: An Interdisciplinary Problem*, 393–401 (1st ed. 2021)

SHORTER WORKS

**Disciplining Mechanisms: Governing Data Markets with Competition and Regulation**

28 YALE JOURNAL OF LAW & TECHNOLOGY 308 (2026)

WORKS IN PROGRESS

**The End of First Amendment Lochnerism** (*working title*) (with Gregory Elinson)

- This article shows how the conservative justices of the Supreme Court have recently refused industry's invitations to employ a deregulatory paradigm in free-speech cases and offers an explanation about why.

**Distilling Knowledge Work** (*working title*)

- This essay argues that generative artificial intelligence has triggered a single conflict that recurs at two layers of the economy: within firms, between labor and management; and across firms, between enterprises and the frontier AI labs. It explores the role that law plays in structuring that conflict and considers the regulatory implications of its resolution.

**Expressive Interests in Language Model Outputs** (*working title*)

- This article intervenes in an ongoing debate about whether and when the outputs of large language models (LLMs) are protected by the First Amendment. It argues that asking whether such outputs are covered in the abstract is the wrong question, and it constructs an alternative formulation consistent with current doctrine.

## Conferences, Workshops & Presentations

SEPT. 25  
2026

**Chicagoland Junior Scholars Conference**

Paper Workshop (COMPETITIVE) • Northern Illinois University & Loyola University Chicago  
*The End of First Amendment Lochnerism* (with Gregory Elinson)

- MAR. 27  
2026 **Philly Area Junior Faculty Forum**  
Paper Workshop • Temple University Beasley School of Law  
*Making Sense of the Waning Deregulatory First Amendment*
- SEPT. 8  
2025 **Professor Irina Manta's Intellectual Property Colloquium**  
Guest Lecture (INVITED) • Maurice A. Deane School of Law at Hofstra University  
*Regulating Data Monetization*
- MAY 29  
2025 **Privacy Law Scholars Conference**  
Paper Workshop (COMPETITIVE) • University of California, Los Angeles School of Law  
*Regulating Data Monetization*
- MAR. 28  
2025 **Governing Data**  
Symposium (INVITED) • Yale Law School  
*Disciplining Mechanisms*
- FEB. 24  
2025 **Professors Mihailis Diamantis & Rishab Nithyanand's Privacy Law & Technology Course**  
Guest Lecture (INVITED) • University of Iowa College of Law  
*Regulating Data Monetization*
- SEPT. 27  
2024 **Chicagoland Junior Scholars Conference**  
Paper Workshop (COMPETITIVE) • Northern Illinois University & Loyola University Chicago  
*Regulating Data Monetization*
- MAY 30  
2024 **Privacy Law Scholars Conference**  
Paper Workshop (COMPETITIVE) • Georgetown University Law Center  
*Privacy Law's Incumbency Problem*
- OCT. 23  
2023 **Professor Margaret Kwoka's Information Governance Colloquium**  
Paper Workshop (INVITED) • The Ohio State University Moritz College of Law  
*Privacy Law's Incumbency Problem*
- OCT. 6  
2023 **Chicagoland Junior Scholars Conference**  
Paper Workshop (COMPETITIVE) • Northern Illinois University & Loyola University Chicago  
*Privacy Law's Incumbency Problem*
- JUNE 2  
2022 **Privacy Law Scholars Conference**  
Paper Workshop (COMPETITIVE) • Northeastern University  
*Privacy Qui Tam*

- MAR. 26  
2021      **Appalachian Research in Business Symposium**  
Paper Presentation (PEER REVIEWED) • Eastern Kentucky University (VIRTUAL)  
*Overcoming Two Constitutional Hurdles to Effective Digital Privacy Regulation*
- AUG. 7  
2020      **Academy of Legal Studies in Business Annual Conference**  
Paper Presentation • VIRTUAL  
*Making Privacy Injuries Concrete*
- JUNE 7  
2020      **Privacy Law Scholars Conference**  
Paper Workshop (COMPETITIVE) • Berkeley Center for Law & Technology (VIRTUAL)  
*Making Privacy Injuries Concrete*
- NOV. 8  
2019      **Northeast Privacy Scholars Workshop**  
Paper Workshop (COMPETITIVE) • Princeton University  
*Privacy Injuries and Article III Concreteness*
- JAN. 19  
2019      **Huber Hurst Research Seminar**  
Paper Workshop (COMPETITIVE) • University of Florida, Warrington College of Business  
*A Private Enforcement Remedy for Information Misuse*
- AUG. 11  
2018      **Academy of Legal Studies in Business Annual Conference**  
Paper Presentation • Portland, OR  
*Ransomware* (with Lawrence J. Trautman) (*in absentia*)
- AUG. 10  
2017      **Academy of Legal Studies in Business Annual Conference**  
Panel Discussion • Savannah, GA  
*Cyber Threats to Business* (with Peter Swire, Scott Shackelford & Lawrence J. Trautman)
- AUG. 9  
2017      **Academy of Legal Studies in Business Annual Conference**  
Paper Presentation • Savannah, GA  
*Industrial Cyber Vulnerabilities: Stuxnet* (with Lawrence J. Trautman)
- AUG. 8  
2017      **Academy of Legal Studies in Business Annual Conference**  
Paper Presentation • Savannah, GA  
*Digital Is Different: Carpenter v. United States* (with Lawrence J. Trautman)

## Courses Taught

### LAW SCHOOL

Business Associations  
Information Privacy Law  
Internet Law  
Seminars: *Artificial Intelligence & the Law*; *Privacy Law*  
Torts

### BUSINESS SCHOOL

Individual Rights  
Legal & Ethical Environment of Business  
Legal Aspects of Managing Technology  
Unfair Business Practices

## Service

### SCHOLARLY

- 2026 **Privacy Law Scholars Conference**  
Commenter on Yutang Hsiao's *Fiduciary Data Governance*
- 2026 **Freedom of Expression Scholars Conference**  
Commenter on Robert Post's *Misunderstanding University Speech*
- 2025 **Privacy Law Scholars Conference**  
Commenter on Paul Ohm & Susan Freiwald's *Superwarrants*, 68 ARIZONA L. REV. 359 (2026)
- 2023 **Chicagoland Junior Scholars Conference**  
Junior commenter on Zvikomborero Chadambuka's *Data Ownership for Data Subjects: Revisiting Information Monopoly Concerns*
- 2023 **Privacy Law Scholars Conference**  
Commenter on Colin M. Gray, Cristiana Santos, Nataliia Bielova & Johanna Gunawan's *What Evidence is Needed to Prove the Existence of Dark Patterns?*
- 2021 **Privacy Law Scholars Conference**  
Commenter on Mailyn Fidler's *Warranted Exclusion: A Case for a Fourth Amendment Built on the Right to Exclude*, 76 SMU L. REV. 315 (2023)

## VILLANOVA UNIVERSITY

- 2027– Admissions Committee
- 2027– Learning Outcomes Task Force
- 2026 University Committee on the Ethical Use of Artificial Intelligence in the Augustinian Tradition
- 2025–26 Academic Affairs Committee
- 2025–26 Artificial Intelligence Working Group

## NORTHERN ILLINOIS UNIVERSITY

- 2024–25 Writing Group Organizer
- 2023–25 Admissions Committee
- 2023–25 Bar Success Task Force
- 2022–25 Curriculum Committee
- 2022–25 Faculty Development Committee
- 2024 Search Committee for the Director of the Business Law Innovation Clinic
- 2022–24 Assessment Committee

## WESTERN CAROLINA UNIVERSITY

- 2022 Working Group to Establish a Cybersecurity Minor
- 2019–22 Liberal Studies Committee
- 2019–21 University Curriculum Committee
- 2020 Search Committee for Assistant/Associate Professor of Business Law
- 2020 Search Committee for the Director of the School of Accounting, Finance, Info. Systems, and Business Law
- 2018–20 Student Community Ethics Committee

## Experience

- 2011–15 **Holland & Knight, LLP**  
Public Policy & Regulation Group • Washington, DC  
*Law Clerk & Staff Attorney*
- SUMMER 2011 **United States District Court for the District of Columbia**  
Chambers of Judge Amy Berman Jackson  
*Judicial Intern*

## Bar Admissions

- 2016– North Carolina
- 2016– District of Columbia
- 2013– Maryland